

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rolando Vasquez	Team: Squad #08	CCRB Case #: 201600736	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 01/27/2016 9:36 PM	Location of Incident: Bedford Avenue L Subway Station	18 Mo. SOL 7/27/2017	Precinct: 94
Date/Time CV Reported Wed, 01/27/2016 10:25 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 01/27/2016 10:25 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Derek Andrews	29233	942751	TB BKTF
2. SGT Derek Barreto	02378	934558	TB BKTF

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Yaphet Harper	20160	922480	TB BKTF

Officer(s)	Allegation	Investigator Recommendation
A . SGT Derek Barreto	Abuse: Sergeant Derek Barreto authorized the stop of § 87(2)(b)	A . Substantiated
B . POM Derek Andrews	Abuse: Police Officer Derek Andrews stopped § 87(2)(b)	B . Substantiated
C . POM Derek Andrews	Force: Police Officer Derek Andrews used physical force against § 87(2)(b)	C . Exonerated

Case Summary

§ 87(2)(b) first filed this complaint on January 27, 2016 via the CCRB's website. On January 28, 2016, § 87(2)(b) filed a complaint about this incident in-person at the Transit District 4 stationhouse which generated IA log #2016-3433.

On January 27, 2016, at approximately 9:36 p.m., § 87(2)(b) entered the Bedford Avenue subway station in Brooklyn. § 87(2)(b) was with her friend, § 87(2)(b). § 87(2)(b) paid her fare but § 87(2)(b) did not. On the subway platform, § 87(2)(b) was stopped on the instruction of Sgt. Derek Barreto by PO Derek Andrews of Transit Bureau Brooklyn Task Force (**Allegation A, Allegation B**). PO Andrews grabbed § 87(2)(b) arm and pulled her toward him (**Allegation C**). PO Yaphet Harper proceeded to issue § 87(2)(b) a summons for theft of services after it was clarified that she was the intended subject of the stop.

Video footage from the subway station was subpoenaed and received from the MTA. The available footage from the station did not capture this incident. The cameras that captured the subway platform were located inside the subway tunnel and only captured a small portion of the platform.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was suitable for mediation and it was offered to § 87(2)(b) over the phone and during her interview. § 87(2)(b) chose to have her complaint investigated.
- A notice of claim request was submitted to the NYC Office of the Comptroller and will be added to the case file upon receipt (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] .

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) with the CCRB (Board Review 02).
- Sgt. Barreto has been a member of the service for 11 years and has no substantiated allegations. Sgt. Barreto has one prior stop allegation in CCRB case 200700336 which was exonerated (Board Review 03).
- PO Andrews has been a member of the service for nine years and has no substantiated allegations. PO Andrews has one prior force allegation in case 201307789 in which he brought a resisting subject to the ground. The allegation was exonerated by the Board (Board Review 04).

Findings and Recommendations

Allegation A – Abuse of Authority: Sergeant Derek Barreto authorized the stop of

§ 87(2)(b)

Allegation B – Abuse of Authority: Police Officer Derek Andrews stopped

§ 87(2)(b)

Allegation C – Force: Police Officer Derek Andrews used physical force against

§ 87(2)(b)

§ 87(2)(b) is a Hispanic female, § 87(2)(b), and has black hair. § 87(2)(b) was wearing a hat. During this incident, she was with her friend, § 87(2)(b).

§ 87(2)(b) is a white female, § 87(2)(b), and has blue hair. § 87(2)(b) was not wearing a hat. § 87(2)(b) testified that she entered the subway station with § 87(2)(b) (Board Review 05). § 87(2)(b) paid her fare but § 87(2)(b) jumped the turnstiles. § 87(2)(b) and § 87(2)(b) got downstairs to the subway platform. § 87(2)(b) was walking near the middle of the platform. PO Andrews approached § 87(2)(b) from behind and said, “New York Transit Police.” § 87(2)(b) jumped back because she was afraid about what was happening. PO Andrews grabbed the upper part of § 87(2)(b) arm and pulled her toward him. PO Harper approached and collected § 87(2)(b) and § 87(2)(b) ID. § 87(2)(b) ID was returned after Sgt. Barreto made a hand motion to the two officers. § 87(2)(b) was issued a summons by PO Harper. § 87(2)(b) did not sustain any injuries during this incident aside from some soreness on her arm that subsided by the next day.

§ 87(2)(b) is a friend of § 87(2)(b) and was identified as a witness by § 87(2)(b) and by the summons she was issued by PO Harper. § 87(2)(b) provided a statement to the CCRB (Board Review 07). § 87(2)(b) is a white female, § 87(2)(b), and has blue hair. § 87(2)(b) was not wearing a hat. § 87(2)(b) testified that she crawled under the turnstiles without paying her fare. On their way to the subway platform, § 87(2)(b) saw PO Andrews getting close to § 87(2)(b) and § 87(2)(b) kept walking down the platform. PO Andrews said something but § 87(2)(b) could not hear specifically what he said. § 87(2)(b) kept walking and heard § 87(2)(b) yell, “Let go.” § 87(2)(b) turned around and saw PO Andrews holding § 87(2)(b) arm. § 87(2)(b) was closer to the edge of the platform than the middle but § 87(2)(b) could not remember if she was on the yellow safety strip. § 87(2)(b) was trying to pull away from PO Andrews’ grasp. § 87(2)(b) walked toward PO Andrews and § 87(2)(b) PO Harper got in § 87(2)(b) path. § 87(2)(b) realized that PO Harper was wearing a badge. § 87(2)(b) then noticed that PO Andrews was holding a badge in his hand. § 87(2)(b) got free of PO Andrews’ grasp. Sgt. Barreto was standing at the top of the staircase. Sgt. Barreto nodded at the officers and pointed toward § 87(2)(b) PO Harper then proceeded to issue § 87(2)(b) a summons.

§ 87(2)(b) and § 87(2)(b) described a male who received a summons during this incident. The investigation identified this male as § 87(2)(b) from the summons he was issued by PO Andrews. § 87(2)(b) provided a detailed phone statement to the CCRB (Board Review 08). § 87(2)(b) stated that he was stopped for jumping the turnstiles at the subway station. § 87(2)(b) saw § 87(2)(b) and § 87(2)(b) walking down the stairs. PO Andrews approached § 87(2)(b) PO Andrews said something to § 87(2)(b) that § 87(2)(b) could not hear. § 87(2)(b) kept walking passed PO Andrews. PO Andrews grabbed § 87(2)(b) arm and pulled her toward him. § 87(2)(b) pulled away from PO Andrews. § 87(2)(b) moved toward the edge of the platform. § 87(2)(b) did not remember if § 87(2)(b) got to the yellow safety strip. PO Andrews touched § 87(2)(b) arm again. § 87(2)(b) calmed down and walked toward where § 87(2)(b) and PO Harper were standing. § 87(2)(b) was issued a summons by PO Harper. § 87(2)(b) did not see any officer giving PO Andrews or PO Harper any signals.

Sgt. Barreto testified that he observed § 87(2)(b) enter the subway station without paying (Board Review 09). § 87(2)(b) had blue hair. § 87(2)(b) paid her fare. § 87(2)(b) and § 87(2)(b) were walking side by side down the stairs to the subway platform. Sgt. Barreto signaled to the officers on the platform to stop § 87(2)(b) by tapping the top of his head. Sgt. Barreto made this motion to indicate that there was something about the girl’s head that distinguished her from § 87(2)(b) Sgt. Barreto did not remember if § 87(2)(b) was wearing a hat. Sgt. Barreto did not attempt to inform the officers in any other way, such as over the radio,

who he wanted to be stopped. On the platform, PO Andrews approached the two girls who were walking side by side. § 87(2)(b) pulled her arm back and raised it above her head. Sgt. Barreto did not see anything that precipitated this motion. Sgt. Barreto did not see PO Andrews make any physical contact with § 87(2)(b). Sgt. Barreto went downstairs to see what was happening. § 87(2)(b) was not complaining about why she had been stopped. PO Harper issued § 87(2)(b) a summons.

PO Andrews testified that he was dealing with a male that he had stopped on the platform at the subway station (Board Review 10). § 87(2)(b) and § 87(2)(b) were at the bottom of the stairs to the subway platform. PO Andrews saw Sgt. Barreto pointing toward § 87(2)(b) and § 87(2)(b). PO Andrews could not tell who Sgt. Barreto was pointing to so he looked at him again. Sgt. Barreto started tapping the top of his head. PO Andrews interpreted this to mean that § 87(2)(b) should be stopped because she was wearing a hat. There was nothing distinctive about § 87(2)(b) head. PO Andrews did not remember § 87(2)(b) having blue hair. The signal Sgt. Barreto was giving, tapping his head, does not have any set meaning to PO Andrews. That signal does not mean hat. PO Andrews' team does not have any set signals to differentiate people who are going to be stopped. Sgt. Barreto did not attempt to inform the officers in any other way, such as over the radio, who he wanted to be stopped. PO Andrews approached § 87(2)(b) and showed him his badge and NYPD ID. PO Andrews stated, "Transit police. I need to talk to you." § 87(2)(b) rolled her eyes and walked by PO Andrews. PO Andrews placed his fingers around § 87(2)(b) elbow to get her attention. § 87(2)(b) turned around, pulled her elbow back and stepped away from PO Andrews toward the edge of the subway platform. § 87(2)(b) was standing on the yellow strip at the edge of the platform. PO Andrews placed his fingers on § 87(2)(b) elbow again and pulled her away from the edge to prevent her from getting hit by an incoming subway train. PO Andrews instructed § 87(2)(b) to walk toward the rest of his team and she complied. Sgt. Barreto came downstairs and spoke with § 87(2)(b). PO Andrews resumed issuing to a summons to the male that he had previously stopped.

PO Harper testified that he was working on the subway platform (Board Review 11). Sgt. Barreto signaled PO Harper and PO Andrews to stop an individual who was coming down the stairs. Sgt. Barreto signaled by tapping the top of his head. This signal does not have any established meaning to PO Harper. PO Harper had interpreted the signal to mean that Sgt. Barreto wanted § 87(2)(b) to be stopped because she was wearing a hat. PO Andrews approached § 87(2)(b) and said, "Excuse me, miss. I need to talk to you." PO Andrews showed his badge to § 87(2)(b). § 87(2)(b) looked at his badge and continued walking. PO Andrews grabbed § 87(2)(b) arm and said, "Excuse me, miss. Hold on. Wait." PO Andrews did not pull § 87(2)(b) toward him. § 87(2)(b) pulled away from PO Andrews and stepped back toward the stairs. Sgt. Barreto came downstairs to the platform and said, "Not her, her friend." PO Harper then started issuing a summons to § 87(2)(b). PO Harper realized that Sgt. Barreto's signal was meant to indicate to stop § 87(2)(b) because she had blue hair.

People v. De Bour, 40 NY 2d 210 (1976), states that police officers can forcibly stop and detain a person when the officer possesses reasonable suspicion that the person has committed, is committing, or is about to commit a felony or misdemeanor (Board Review 12).

As clarified in People v. Powell 2012 NY App Div LEXIS 8278 (2012), "Under the fellow-officer rule, if an arresting officer lacks personal knowledge sufficient to establish probable cause, the arrest will be lawful if the officer acts upon the direction of or as a result of communication with a superior or fellow officer or another police department, provided that the

police as a whole were in possession of information sufficient to constitute probable cause to make the arrest” (Board Review 13).

PG 203-11 states that officers “must use minimum necessary force” at the scene of a police incident (Board Review 06).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **substantiated**.

§ 87(2)(g)

Therefore it is recommended that **Allegation B** be closed as **substantiated**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **exonerated**.

Squad: 8

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date